STANDARD OPERATING PROCEDURE			P-3600	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **11/21/23**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 60-1901, 60-4110, 60-6164			
SUBJECT TOWING PROCEDURES	CROSS REFERENCE A-7100 EVIDENCE AND PROPERTY G-4520 TRAFFIC AND CRIMINAL SOFTWARE			

I. Purpose:

The purpose of this policy is to establish procedures for towing vehicles.

II. Policy:

The Sarpy County Road Patrol is responsible for the roadways within Sarpy County. To ensure uninterrupted traffic flow, Road Patrol Units are often required to tow vehicles. Road Patrol deputies shall only tow vehicles in accordance with Nebraska State Statute and Sheriff's Office policy using authorized towing companies.

III. Procedure:

A. Types of Tows:

1. **Sheriff's Office Tow:** Occurs when a vehicle has been disabled to the point it is not drivable or unsafe to operate on the roadway, and/or presents a hazard to the motoring public. A deputy shall request a tow truck through dispatch to respond to the location to remove the vehicle. The tow operator must take the vehicle to the Sarpy County Impound Lot (or other approved tow lot, if it is a Commercial Vehicle involved in a crash in which the Crash Response Unit responded).

2. Owner's Request: Occurs when the owner or operator of a disabled motor vehicle requests a tow truck through the deputy at the scene via dispatch. The tow shall be by a Sheriff's Office-approved tow company to be transported to any location, other than the Sarpy County Impound Lot. In this case, no Tow/Impound form shall be required. Deputies shall not have dispatch contact any tow companies except those approved by the county. Deputies shall not request vehicles be towed to the tow company's impound lot unless the owner specifically requests the destination to be the tow company's lot.

3. **Traffic Crash:** Deputies shall tow a vehicle when it has been damaged in a collision to the point that it is either not drivable, or it is unsafe to operate on the roadways of Nebraska. A deputy may also choose to tow a vehicle involved in a collision if the driver has been injured and cannot operate the vehicle.

   a) A deputy shall complete a Tow/Impound Form whenever he or she has a vehicle towed to the Sarpy County Impound Lot or any Sheriff's Office approved tow lot (Sheriff's Office tow).

   b) If the vehicle is not being held as evidence, the vehicle is not impeding traffic flow or presenting any type of hazard, and the driver is not subject to a criminal and/or traffic arrest, the driver may request to make his or her own arrangements for the vehicle to be towed to another tow facility by a tow company selected by the owner/operator. In this instance, deputies shall not request dispatch to make tow arrangements for the citizen. The citizen may make all of his or her own arrangements. Deputies shall advise the owner/operator that the deputy is available to return to assist with traffic control (if needed) upon the arrival of the tow truck and provide the non-emergency number to dispatch to request such assistance.

   c) Deputies shall ensure that vehicles creating a traffic hazard are towed as soon as possible as a Sheriff's Office tow or owners request tow.

4. **Arrests/Citations:** Deputies are required to tow motor vehicles for the following reasons:

   a) The driver is taken into custody.

   b) The driver is cited for driving under the influence, but the driver is not taken into custody for medical or psychological reasons.

   c) The driver has never been issued a driver's license by any state.

   d) The following exceptions may apply:

      (1) When the driver of a motor vehicle is subject to criminal arrest and the vehicle will not be held as evidence in a criminal investigation, the motor vehicle may be released to another individual whose name appears on the registration (or other responsible party with a valid operator's license with permission of a shift supervisor), provided that individual is on scene or can respond to the scene. This transfer of possession shall be at the deputy's discretion and shall only occur after determining the intended driver possesses a valid operator's license and is not impaired.

(2) A motor vehicle may be left at the scene if it is legally parked in an area where it has been routinely parked in the past such as the driver's property, the street in front of driver's residence or the driver's apartment complex. In the case of a custodial arrest, the vehicle must be secured. All unsecured vehicles will be turned over to a responsible party or the deputy must have the vehicle towed.

5. Traffic Citations: Upon issuance of a traffic citation, deputies may tow motor vehicles that are typically considered non-street legal (e.g., ATV's, UTV's, golf carts and minibikes).

6. **Abandoned Vehicle:** Deputies shall tow all vehicles that have been properly "Red Tagged":

a) Deputies encountering or dispatched to an abandoned vehicle shall affix a Sheriff's Office Warning sticker (i.e., Red Tag) to the driver's side rear window of the vehicle (if possible).

(1) The deputy shall request a report number from Communications and shall record the report number on the Warning sticker.

(2) The tires of the vehicle and the concrete shall be marked so that any deputy may be able to determine if the vehicle has been moved.

(3) If the owner of the vehicle does not comply with the Warning and the vehicle is towed, a second report number shall be obtained by the towing deputy. The most recently obtained report number shall be used on the tow sheet with the first report number listed as related.

b) The Sheriff's Office policies for towing abandoned vehicles shall be guided by Nebraska State Statute 60-1901, which states, all or in part, that a motor vehicle is an abandoned vehicle:

(1) If left unattended, with no license plates or valid In Transit stickers affixed thereto, for more than six hours on any public property;

(2) If left unattended for more than twenty-four hours on any public property, except a portion thereof on which parking is legally permitted; or

(3) If left unattended for more than forty-eight hours, after the parking of such vehicle has become illegal, if left on a portion of any public property on which parking is legally permitted.

(4) For the purposes of this policy, public property shall mean any public right of way street, highway, park, or any other state, county, or municipally owned property.

7. **Traffic Hazard:** Deputies shall tow any vehicle that is positioned on the roadway in such a manner that it impedes the flow of traffic or otherwise endangers the safety of the public via sheriff's office tow.

a) A reasonable attempt may be made to contact the owner to see what arrangements, if any, have been made to remove the vehicle, and how long the arrangements will take.

b) The decision to wait for the owner's arrangements shall be left to the discretion of the deputy.

c) The deputy shall document the appropriate Nebraska State Statute on the Tow/Impound Form (generally, 60-6164 Stopping, parking, or standing upon a roadway).

8. **Recovered Stolen Vehicle:** Deputies shall tow all stolen motor vehicles, regardless of what jurisdiction the vehicle was stolen from, and regardless of whether the vehicle is encountered on public or private property.

a) After the deputy verifies with Communications that the vehicle was reported stolen, he or she shall request a report number and complete a Tow/Impound Form and a recovered stolen vehicle incident report.

b) If the vehicle was reported stolen by the Sarpy County Sheriff's Office, the deputy shall place a hold on the vehicle listing the on-call investigator as the deputy requesting the hold. The on-call investigator's name and badge number shall be listed with "on-call investigator" written after it.

c) If the vehicle was reported stolen by any other agency, the deputy shall place a hold on the vehicle listing the reporting agency in the Officer Requesting Hold section. The deputy may contact the agency directly to notify them of the recovery and determine if a hold is requested, but the reporting agency shall be responsible for any processing (evidence collection) of the vehicle (unless additional criminal offenses occurred in Sarpy County). A shift supervisor may authorize a tow without inventory if a deputy determines evidence should be preserved for another

jurisdiction's case. The deputy shall note on the tow form the reason an inventory search was not completed.

d) The towing deputy or the shift supervisor shall notify the on-call investigator of the recovery of any stolen vehicle. During normal business hours, the on-call investigator shall be notified immediately. After hours or on weekends, the deputy or shift supervisor shall leave a copy of the tow sheet in the Investigation's in-box for review by the on-call investigator.

B. Private Property:

1. Deputies shall not tow any vehicle from private property unless the tow is the result of:

a) An arrest;
b) A recovered stolen motor vehicle;
c) A hit and run or personal injury traffic accident; or
d) The vehicle is to be held as evidence in a criminal investigation.

2. Nebraska Statutes deem a motor vehicle to be abandoned if it has been left unattended on private property more than seven days if left without the permission of the owner, or after permission of the owner has been terminated. A deputy shall not tow an abandoned motor vehicle under these circumstances. Instead, the deputy should instruct the property owner to arrange for private removal of the vehicle.

C. Towing-Deputy Responsibilities:

1. Traffic Control and Scene Safety:

a) When vehicles are being towed from the scene of a traffic crash, an arrest, or a traffic hazard on a roadway, the safety of individuals at the scene and the surrounding area is critical. A deputy shall remain at the scene until the vehicle or vehicles are removed. If a deputy is assigned an emergency call prior to a vehicle being towed, he or she may only leave the scene if it is safe to do so.

b) A deputy must adhere to the above guidelines for an owner's request tow if traffic control is required for the safe removal of the vehicle.

2. Tow/Impound Form:

a) Any time a vehicle is towed by a deputy, a Tow/Impound Form shall be completed.

b) In the event evidence or contraband is discovered during the vehicle inventory, a separate Evidence/Property Form shall be completed, and the evidence shall be processed according to Sheriff's Office policy (see G-10300 Evidence and Property), the removal of property from the vehicle shall also be noted on the Tow/Impound Form.

c) If a "hold" is placed on a towed vehicle, the reason for the hold and the requesting deputy's name and badge number shall be noted on the Tow/Impound Form. Holds may include, but are not limited to:

(1) Hold for proper registration.
(2) Hold for proof of insurance.
(3) Hold for proof of ownership.
(4) Hold for a licensed driver.
(5) Hold for an investigator (An investigator must request the hold over the phone, radio, or in person. The hold shall list the Investigators name and badge # making the hold request).
(6) Hold for completion of an accident report.

d) The deputy completing the Tow/Impound form shall ensure that a records check of the vehicle has been completed.

e) The Tow/Impound Form shall be completed electronically using TraCS (Traffic and Criminal Software) and in accordance with policy G-4520 (Traffic and Criminal Software).

(1) The Deputy completing the Tow/Impound Form shall print a copy and sign the form along with obtaining a signature from the Tow Operator. Both signatures shall be captured in TraCS, and the signed copy shall be provided to the Tow Operator.

(2) Deputies shall print a second copy of the Tow/Impound form and provide a copy to the driver or owner. The second copy may be left in the vehicle if the driver or owner is unavailable.

f) The deputy authorizing the release of the hold shall complete an Impound Release Form, which shall be submitted to transcription and faxed or emailed to the Tow Lot.

3. **Property Inventory:** **All** vehicles towed by the Sarpy County Sheriff's Office shall be inventoried prior to being towed.

a) The property inventory section of the Tow/Impound Form shall be completed in all instances where the form is required. This form is used for the protection of the Sarpy County Sheriff's Office and its members against any claims of lost or damaged property.

b) If contraband is found in a vehicle during an inventory search, the deputy shall process the evidence according to Sheriff's Office policy (see G-10300 Evidence and Property).

c) In order to protect the deputy's safety and to protect against claims of loss, all areas of the vehicle, including the trunk, shall be checked for property. All containers within the vehicle, open or closed, shall be opened and inventoried for valuable items.

d) When any valuable item (e.g., jewelry, large amounts of cash, endorsed checks, etc.) is discovered during an inventory search, the deputy shall take the item into custody for safe keeping. The item shall be noted on the Tow/Impound Form and an Evidence/Property Form shall be completed (in accordance with A-7100 Evidence and Property).

D. Prior to Tow-Deputy Responsibilities:

1. The deputy shall ensure the tow is supported by State Statute or Sheriff's Office policy.

2. The deputy shall check the vehicle through NCIC and NCIS, the date and time of the check shall be noted on the Tow/Impound Form.

3. The deputy shall ensure that the door key, ignition key, and/or any remote control, if available, accompany the vehicle.

4. The deputy shall ensure that all windows, sunroofs, etc. are closed, if possible.

E. Towing-Supervisor's Responsibilities:

1. The shift supervisor shall ensure that deputies tow vehicles only when authorized by State Statute or Sheriff's Office policy.